Zone, including the issuance of licenses and the disposition of any gold, the possession of which is not licensed or authorized by the Gold Regulations, will be governed by the provisions of a new section of the Gold Regulations, § 54.80. In summary, the following provisions are made for the transition.

1. Every person who owns or is in possession of gold bullion or foreign gold coin (other than rare gold coin) situated in Hawaii, the Possessions of the United States, or the Canal Zone must file with the Director of the Mint within 30 days from the date of publication of these regulations in the FEDERAL REGISTER, a report concerning such gold. In addition, every person who owns or is in possession of gold bullion situated in Hawaii, a Possession of the United States, or the Canal Zone in an aggregate amount exceeding 50 fine troy ounces, and who requires such gold for legitimate and customary use in the industry, profession or art in which he is regularly engaged, must file an application for a license to hold such gold.

2. For a period of 90 days from the date of publication of these regulations in the FEDERAL REGISTER, persons who own or have in their possession gold situated in Hawaii, any possession of the United States, or the Canal Zone are authorized to hold such gold within Hawaii, such Possession, or the Canal Zone, respectively. In addition, any person regularly engaged in an industry, profession or art who requires gold for legitimate, customary and ordinary use therein, may melt and treat gold and may replenish his supplies of gold provided that the aggregate amount of gold acquired, held, transported, melted or treated at any one time does not exceed 50 fine troy ounces of gold content. The acquisition and holding for the foregoing purpose of gold in amounts exceeding 50 fine troy ounces of fine gold content is authorized only to the extent permitted by licenses issued in accordance with the provisions of § 54.25. Further, the exportation and transportation of gold from Hawaii, a Possession of the United States, or the Canal Zone is permitted only to the extent authorized in § 54.25(b) or a license issued pursuant to such section.

3. During the 90 day period referred to in paragraph 2, above, the United States Mints are authorized to purchase any gold bullion and foreign gold coin situated in Hawaii, the Possessions of the United States, and the Canal Zone which has not at any time been held, transported, exported, etc., in non-compliance with the Gold Reserve Act, the Act of October 6, 1917, as amended, section 3 of the Act of March 9, 1933, or any orders, regulations, rulings, or instructions issued thereunder. The price paid for all gold purchased by the Mint shall be the price specified in § 54.44 of the Regulations, i.e., $35 less ¼ of 1 percent per troy ounce of fine gold and mint charges. Gold which the mints are authorized to purchase under this section may be received through the offices designated, and in accordance with the procedures outlined, in § 54.80 set forth below.

4. The Director of the Mint will, in accordance with the provisions of § 54.25 of the Gold Regulations, issue Treasury gold licenses on the approved form for the holding, melting, treating, etc., of gold in Hawaii, the Possessions of the United States, and the Canal Zone which is necessary for the legitimate and customary requirements of industry, profession or art.

5. On and after 90 days from the date of publication of these regulations in the FEDERAL REGISTER, the acquisition, possession, melting, treating, etc., of gold in Hawaii, the Possessions of the United States, and the Canal Zone will be prohibited except as permitted by the Gold Regulations or licenses issued thereunder.

These regulations are issued without notice and public procedure thereon because such procedures are deemed to be impracticable and contrary to the public interest. The amendments to §§ 54.4 to 54.41 are effective 90 days from the date of their publication in the FEDERAL REGISTER. Section 54.80 is effective on the date of publication in the FEDERAL REGISTER.

(Sec. 5(b), 40 Stat. 415, as amended, sections 3, 8, 9, 11, 48 Stat. 340, 341, 342; 12 U.S.C. 95a, 31 U.S.C. 442, 733, 734, 822b, E.O. 6260, Aug. 28, 1933, as amended by E.O. 10896, Nov. 29, 1960, F.R. issue of Dec. 1, 1960; E.O. 6359, Oct. 25, 1933; E.O. 9193, as amended, 7 F.R. 5205; 3 CFR 1943 Cum. Supp; E.O. 10289, 16 F.R. 9499; 3 CFR 1951 Supp.)

§ 54.4 [Amendment]

Section 54.4(a) (3) and (4) are amended to read as follows:

(3) "United States" means the Government of the United States or where used to denote a geographical area, means the States of the United States, the District of Columbia, and all other places subject to the jurisdiction of the United States.

(4) "States of the United States" means the States of the United States and the District of Columbia.

§ 54.6 [Amendment]

Section 54.6(e) is amended to read as follows:

(e) No license issued hereunder shall exempt the licensee from the duty of complying with the legal requirements of any State or local authority.

Section 54.7 is amended to read as follows:

**§ 54.7 General provisions affecting export licenses.[2]**

At the time any license to export gold is issued, the Bureau of the Mint, or Federal Reserve bank issuing the same, shall transmit a copy thereof to the collector of customs at the port of export designated in the license or, if the port of export is not within the customs territory of the United States, to the government officer at such port charged with the enforcement of laws relating to the exportation of merchandise from the United States. No collector of customs or other government officer charged with the enforcement of laws relating to the exportation of merchandise from the United States shall permit the export or transportation from the States of the United States to the Possessions of the United States, to the Canal Zone, or to places not subject to the jurisdiction of the United States or the export or transportation from the Possessions of the United States or from the Canal Zone to places not subject to the jurisdiction of the United States of gold in any form except upon surrender of a license to export, a copy of which has been received by him from the agency issuing the same (except that licenses on Form TGL–15 (general) covering multiple shipments during a six-months' period are retained by the licensees until the expiration of such period when they are returned to the Director of the Mint): *Provided, however,* That the export or transportation from the States of the United States, the Possessions of the United States and the Canal Zone of fabricated gold may be permitted pursuant to § 54.25(b)(2) and the export or transportation from the States of the United States, the Possessions of the United States and the Canal Zone of gold imported for reexport may be permitted pursuant to §§ 54.32 and 54.33: *And provided further,* That gold held by the Federal Reserve banks under §§ 54.28 to 54.30, may be exported or transported for the purposes of such sections without a license. The collector of customs or other government officer to whom a license to export is surrendered shall cancel such license and return it to the Director of the Mint or the Federal Reserve bank which issued the same. In the event that the shipment is to be made by mail, a copy of the export license shall be sent by the agency issuing the same to the postmaster of the post office designated in the application, who will act under the instructions of the Postmaster General in regard thereto.

Section 54.15 is amended to read as follows:

**§ 54.15 Transportation of gold to the Possessions of the United States.**

Gold may be transported from the States of the United States to the Possessions of the United States and to the Canal Zone only as authorized by §§ 54.25, 54.32, 54.33 or § 54.34 or licenses issued pursuant thereto.

Section 54.25 is amended to read as follows:

**§ 54.25 Licenses.**

(a) *Licenses for the acquisition and holding, transportation, melting and treating, importing and disposition of gold.* (1) Upon receipt of the application and after obtaining such additional information as may be deemed advisable, the Director of the Mint, shall, if satisfied that gold is necessary for the legitimate and customary requirements of the

[2] The regulations in this part shall not be construed as relieving any person from the obligation of compliance with the regulations of the Bureau of Foreign Commerce (formerly the Office of International Trade), (15 CFR Parts 360 to 399), the Bureau of Customs (19 CFR Ch. I) or other laws or regulations relating to the importation or exportation of merchandise, where applicable to imports or exports of gold, or articles containing gold.